

HOUSE No. 4157

The Commonwealth of Massachusetts

PRESENTED BY:

Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act further regulating procurements by the city of Cambridge.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>5/21/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>7/1/2025</i>

HOUSE No. 4157

By Representative Decker of Cambridge, a petition (accompanied by bill, House, No. 4157) of Marjorie C. Decker (with the approval of the city council) for legislation to further regulate procurements by the city of Cambridge. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act further regulating procurements by the city of Cambridge.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding chapter 30B of the General Laws or any other general or
2 special law to the contrary, the City of Cambridge (“Cambridge”) may, for the procurement of a
3 supply or service in the amount of \$20,000 or less, use sound business practices (as defined in
4 M.G.L. c. 30B, § 2) so long as the business awarded the contract is a disadvantaged businesses,
5 diverse businesses, or small and local business enterprises, as certified by the supplier diversity
6 office, by the City of Boston (“Boston”), by Cambridge by virtue of its compact (which may be
7 amended from time to time) with Boston, or by virtue of certification by Cambridge, customarily
8 providing the supply or service. Cambridge shall meet the requirements of section 3 of chapter
9 30B, for those instances where contracts result from a purchase of \$10,000 or more.

10 SECTION 2. Notwithstanding chapter 30B of the General Laws or any other general or
11 special law to the contrary, the procurement officer of Cambridge may, for the procurement of a
12 supply or service in the amount of \$20,000 or greater, but not more than the small procurement

threshold as defined by the Commonwealth of Massachusetts Operational Services Division, seek written quotations through a procurement officer from not fewer than three (3) disadvantaged businesses, diverse businesses or small and local business enterprises, as certified by the supplier diversity office, by Boston, by Cambridge by virtue of its compact (which may be amended from time to time) with Boston, or by virtue of certification by Cambridge, customarily providing the supply or service. The procurement officer shall record: (i) the names and addresses of all persons from whom quotations were sought; (ii) the specifications used for the procurement; (iii) the names of the persons submitting quotations; and

(iv) the date and amount of each quotation. The recorded information shall be retained in the file required pursuant to section 3 of said chapter 30B. The procurement officer shall award the contract to the eligible and responsible bidder offering the needed quality of supply or service at the lowest quotation. After awarding a contract under this section, Cambridge shall publish notice of such award on Cambridge's website or other appropriate notification platform.

SECTION 3. The provisions of this act are severable and if any provision, or portion thereof, should be held to be unconstitutional or otherwise invalid by any court of competent jurisdiction, such unconstitutionality or invalidity shall not affect the remaining provisions, which remain in full force and effect.

SECTION 4. This act shall take effect upon its passage.